HILCHOT HANUKKAH — SHULHAN ARUKH

A Blessing on a Custom? The Shul Menorah & When to Light

Hilchot Hanukkah | Siman 671–672

Dayan Daniel Kada · Thursday Night Halacha · Shiur 3 of 7 Shulḥan Arukh, Oraḥ Ḥayim 671:7–8 and 672:1

Review and Tonight's Plan

- **Shiur 1 (Siman 670):** what is not allowed on Hanukah, and the historical aspects of the festival.
- **Shiur 2 (Siman 671):** where to place the menorah, its height (minimum and maximum), and what to do if you live above twenty amot.

Tonight, in the order of the Shulḥan Arukh: 1. **Lighting in the synagogue** (671:7, second half). 2. **A house with two entrances** to the public domain (671:8). 3. **The earliest and correct time to light** (672:1). 4. The latest time to light, which moved to next week.

Part One: The Synagogue Menorah (671:7)

The Text

ובבית הכנסת מניחו בכותל דרומי (the Rema corrects: **בדרום**, in the southern part), **כמו שהיה המנורה בדרום, ומדליקין ממזרח למערב. ומדליקין ומברכין בבית הכנסת משום פרסומי ניסא.**

In the synagogue it is placed in the south, as the Menorah stood in the south of the Temple, and one lights from east to west. And one lights and says the berachah in the synagogue, because of publicising the miracle.

Picture your synagogue: face the east, toward the Ark. The menorah stands on the **south** side, and the lights are lit **from east to west**, from the Ark end toward the back, as in the Beit HaMikdash. (Which direction to light at **home** comes later.)

The Bi'ur Halacha's question: why does the Shulḥan Arukh first tell us *where* to place it, and only then that we light and bless? Surely the main law should come first. **Answer:** this seif is about **placement**. Having described placement in the home (opposite the mezuzah, the height and so on), it contrasts the synagogue, where the doorway is irrelevant and the menorah simply goes in the south. Only then does it add that we light and bless there.

The Rema's Additions

1. **Lighting in the synagogue does not fulfil your own obligation.** The ḥazzan or rabbi who lights, or whoever is honoured, **must light again at home**.
2. **The custom is to light between Minḥah and Arvit.**

3. **On Friday**, some light **before Minḥah**, out of concern that after Minḥah it may already be Shabbat.
4. **During the week**, if the congregation is in a hurry ("apparently even in those days people were in a rush to pray"), the ḥazzan may light the first light and start Arvit while **the shamash finishes lighting the rest**.

The Origins of the Custom

The Gemara speaks only of **the household's** menorah, lit by the head of the household. **Nowhere in the Talmud, nor among the Geonim, is a synagogue menorah mentioned.**

Source	Who / where / when	Notes
Sefer Ha'Ittur	R. Yitzḥak ben Abba Mari, **Marseille**, late 12th century	The **first mention** known to the Rabbi, describing it as an established custom
The Me'iri	Provence, a few years later	Perhaps the first among Sephardim to mention it
The Rif and the Rambam		**No mention at all.** "We should be very clear on that"

So the custom takes hold in the **late 1100s and 1200s**, about 800 years ago.

Five Reasons for the Custom

The Rabbi found **five different reasons** in the Rishonim. **Remember them, because they have practical ramifications.**

#	Reason	Source
1	**פרסומי ניסא**: to publicise the miracle further, as an elaboration of the home mitzvah. **The main reason, given by most Rishonim**	The Me'iri, the Ittur and others
2	**Persecution**: there was a time when Jews were afraid to light even at home, even on the table, lest it identify them as Jews, and many did not light at all. At the very least, **one menorah was lit in the synagogue**	The **Rivash** (R. Yitzḥak bar Sheshet), Barcelona, 14th century
3	**מקדש מעט**: the synagogue is a small Temple, and the Temple had a Menorah	**Sefer HaMikdash**, 13th century
4	**The rabbi or ḥazzan lived in the synagogue.** He lit for his family there, which served the whole congregation, and the custom grew from that	The **Shibbolei HaLeket**, Rome
5	**For guests and travellers** with nowhere proper to light	The **Beit Yosef** himself

A Unique Feature of Hanukah

Connected to reason 2: later we will learn that **someone unable to light can say a berachah on seeing a menorah**. The Rabbi could think of **no other mitzvah** where, if you cannot perform it, you bless on seeing someone else perform it. This exists only on Hanukah, because of **pirsumei nisa**.

A Berachah on a Custom?

The custom is to light, which is fine. But the Shulḥan Arukh rules that we **say a berachah**.

The Mishnah Berurah (Seif Katan 44): just as we bless on **Hallel of Rosh Ḥodesh**, which is only a custom, so we bless on this custom.

The Problem for Sephardim

- The Gemara obliges Hallel on Pesaḥ, Sukkot and other days. **Rosh Ḥodesh is not one of them.** Hallel on Rosh Ḥodesh is a **minhag**.
- **The Rambam's principle: you never say a berachah on a custom.** You cannot say **אשר קדשנו במצוותיו וצונו**, "who commanded us," about something Hashem did not command.
- The **Shulḥan Arukh** follows the Rambam, and the **Middle Eastern Sephardim** (Syrians, Iraqis and others) **do not bless on Hallel of Rosh Ḥodesh**.
- **Ashkenazim do bless** (as the Mishnah Berurah says), as did many **Moroccan** communities and the **Spanish & Portuguese**.

A personal aside: when the Rabbi joined the S&P some eleven or twelve years earlier, he faced exactly this. His own custom is not to bless on Rosh Ḥodesh Hallel, yet the S&P custom is to bless, and he often leads Hallel. The **Ḥida** has a responsum on a Sephardi leading Hallel in an Ashkenazi synagogue, and rules that he may, for various reasons. It is a classic Ḥida responsum: although Sephardi himself, the Ḥida travelled the world and spent time in many Ashkenazi communities. "A rabbi's responsa very often reflect the social milieu he was in."

So the question stands: if Sephardim do not bless on Rosh Ḥodesh Hallel, how can the Shulḥan Arukh rule that we bless on the synagogue menorah, which is clearly a custom?

The Classic Minhag Without a Berachah: The Aravah

The Rabbi asked the class: what is the classic once-a-year minhag on which we pointedly do **not** say a berachah?

The aravah on Hoshana Rabbah. The Gemara's entire description is four words: **חביט חביט ולא בריך**, *he beat it, he beat it, and did not bless*. The Gemara concludes that taking the aravah by itself is a **minhag**, an ancient one, and therefore **no berachah**. "People don't know what they're saying when they're banging this aravah on the floor." This is the Rambam's source for no berachah on a minhag.

Three Answers

1. The Rivash (about 600 years ago): distinguish **small customs** from **great customs**. The aravah is a small thing; publicising the miracle is a **great and important** custom, which justifies a berachah, just as Hallel on Rosh Ḥodesh is a great custom worth blessing on. *But* that works only for those who bless on Rosh Ḥodesh Hallel. It does not help Sephardim.

2. The Vilna Gaon (also discussed by the **Ḥacham Tzvi** and many commentators): there is another time in the year when the congregation publicly blesses on a custom. The Rabbi asked the class when. **Hallel on Seder night in the synagogue**, said with a berachah at the end of Arvit on both nights of Pesaḥ (not the Hallel in the Haggadah, which is an enactment of the Sages in the Mishnah). There is a mention in the Yerushalmi, but **essentially it is a custom**, and Sephardim bless on it. Why? **Because it publicises the miracle.** Pirsumei nisa is so prominent that it justifies a berachah even on a custom.

There are other cases too, such as a woman immersing out of custom only in the first weeks after childbirth, where the poskim debate whether to bless. But the general principle remains: **anything not Talmudic, a later development, gets no berachah. Hanukah is the exception, because of pirsumei nisa.**

3. Ḥacham Ovadia: we refuse a berachah on a minhag **when the minhag is an entirely new thing**. Beating the aravah, or Hallel on Rosh Ḥodesh, is new; you cannot say **וצונו**. But **Hanukah lighting is already a mitzvah**: Hashem commands you to light at home tonight. Extending it to the synagogue is **an embellishment and continuation** of a real commandment, so **וצונו** fits.

Even so, the Rabbi is "pretty confident" that **the Rambam** would say not to bless here.

Why Not "ספק ברכות להקל"?

Usually, when there is doubt about a berachah, **we are lenient and do not say it**, even in many places where the Shulḥan Arukh rules to bless. So why not here?

Because when an established custom follows one side of a dispute, we bless. We rely on this every morning:

הנותן ליעף כח, "who gives strength to the weary," appears nowhere in the two Talmudic discussions of the morning blessings.

- **The Shulḥan Arukh itself rules that this custom is incorrect and that one should not say the berachah.**
- Yet almost all Sephardim say it, because **the Arizal endorsed it**, and once it is an established practice, *safek berachot lehakel* does not apply.

A participant's correction: "Not everybody." The **S&P siddur** omits it. The Rabbi had checked the night before: "It's not there." It is the only siddur he has found that leaves it out, following the Shulḥan Arukh. (He wondered what the **Italian** rite does.)

Applied to the synagogue menorah: every synagogue today lights, so it is an established practice among Israel, and we bless.

Public Menorahs: Weddings, Dinners, Shopping Centres

Everyone has lit at home, but at a wedding, bar mitzvah or dinner on Hanukah someone suggests lighting a menorah for the atmosphere. **May one say a berachah?**

A participant suggested: no, because the custom was established only for the synagogue.

Test it against the five reasons:

Reason	Applies in a hotel or public space?
1. Pirsumei nisa	**Arguably yes**
2. We can't light at home	No: we already light at home and in the synagogue
3. Mikdash me'at	No: it is not a synagogue
4. The rabbi lives there	No
5. Guests have nowhere to light	No

Only pirsumei nisa remains. So **the majority of poskim rule: no berachah when lighting in a public place.**

Ḥacham Ovadia takes a more lenient line: **יש להם על מה שיסמוכו**, those who bless have something to rely on, because pirsumei nisa is unique to Hanukah, and **מצוות נר חנוכה חביבה היא עד מאוד**. "For reasons I don't fully understand," the Rabbi added. Ḥacham Ovadia adds that it is best to **hold Arvit there**, which gives the place something of a synagogue's status.

"Think about the incredible work which Chabad do," spreading menorahs to the most far-flung places. Every year another London neighbourhood gets one; the previous year **Westfield** shopping centre had a huge menorah on its top floor for the first time. "This is incredible, beautiful. But the reality is, according to the vast majority of poskim, it's not correct to say a berachah on these menorahs," since it is neither your home nor a synagogue, and blessing in the synagogue is already enough.

That said, the Rabbi has seen **Ḥacham Yitzḥak Yosef** light at a Hanukah dinner and say the berachah. "People do do this nowadays… but we should be aware it's very shaky, the foundations."

Practical Laws of the Synagogue Menorah

A minyan is required

The berachah is said because of **pirsum ha-nes**, which requires **ten people**. Without a minyan, it is not lit with a berachah.

Who counts? Unanimously, **women**, and **children of ḥinuch age**. Pirsum ha-nes is modelled on **קידוש השם**: - Normally one does not give up one's life except for the three cardinal sins. But if someone demands, **in front of ten**, that you transgress *specifically to make you renounce your faith* (e.g. "eat this non-kosher food in front of your community, to show you Jews"), you must give up your life. - For that "ten," **women certainly count**, and possibly children of ḥinuch age. Men and women are equal there, and men and women are **equally obligated** in Hanukah lighting. - So **nine men and one woman** are enough to light with a berachah (for the menorah, not for Arvit).

Friday afternoon: lighting before the minyan arrives

A very common case: Shabbat is about to come in, only five people are present, and latecomers will make ten within minutes. May you light now?

Some poskim say you must wait. But a commentary on the page brings **quite convincing proofs** that you may light, **provided you are confident** that ten people will have benefited from the menorah by the end of the service. **Ḥazon Ovadia** follows this, and "we often have to rely on this on Friday nights on Hanukah."

How long must it burn?

At home the lights must burn **thirty minutes** (details to come). In the synagogue: - Arvit takes ten or fifteen minutes at most; then everyone goes home to light. - Leaving a flame burning in an empty building is **a safety hazard**, so most synagogues **extinguish it after Arvit**. - **That is fine.** The thirty minutes belongs to **the home**, so passers-by see it. In the synagogue **the public lighting itself is the mitzvah**, so even a few minutes is enough.

Lighting again at home, and Sheheḥeyanu

The one who lit in the synagogue must **light again at home, even if home alone**, and says the berachot again. But on the **first night**:

At home…	Berachot
Lighting for a wife or children	**All three**, including **Sheheḥeyanu**, for them
Alone	**The first two only.** No Sheheḥeyanu

Why? Sheheḥeyanu is on the festival and the mitzvah of lighting. Some argue the home lighting deserves its own Sheheḥeyanu, but **the general understanding** is that the synagogue lighting, although a custom rather than an obligation, was still the mitzvah of lighting the menorah with a berachah, so its Sheheḥeyanu counts.

When the first night falls on Friday: everyone lights at home before coming to synagogue and has already said Sheheḥeyanu, so **the synagogue lighting omits Sheheḥeyanu**.

The timing on Friday, and the "contradiction" problem

The Rema writes that some light before Minḥah, but **his own custom was between Minḥah and Arvit**.

A newer idea (no mention of it until about 300–400 years ago; the Rabbi believes the **Pri Megadim** is first): on Friday of Hanukah, **pray Minḥah before lighting**. Otherwise you have lit for the coming night and then pray the previous day's Minḥah, which is **תרתי דסתרי**, a self-contradiction. - The **Ben Ish Ḥai** was sharp about this, and **R. Mordechai Eliyahu** went so far as to say it is better to pray Minḥah **alone** at home than with a minyan after lighting. - **The Rabbi:** "That's a very extreme shitah, and the halacha, we don't hold that at all." - In any case, the whole discussion concerns **individuals**. **For the congregation**, lighting between Minḥah and Arvit, or before Minḥah, is entirely acceptable, and that is the custom in most places.

The English winter makes this concrete. With Shabbat coming in at about 3:30 in December, a synagogue would need to start at 3:10 to pray Minḥah, light and then begin Kabbalat Shabbat.

Robert pointed out that there may not be enough time at all: you would need to light at home early enough, reach the synagogue, pray Minḥah and still light before Shabbat. The Rabbi agreed: "That's a really good point." In more equatorial places the hours are less extreme, but "you just need a couple of guys not to show up on time and it's all going to fall apart." In England, with roughly a half-hour window, it is almost impossible.

Sharing the lighting: Sephardi and Ashkenazi customs

The Rema allowed the shamash to finish lighting so Arvit can start. The **Mishnah Berurah** permits it because of **טירחא דציבורא**, the burden on the congregation, though normally the one who starts lighting should finish.

The Sephardi custom is different: in many families everyone of ḥinuch age, women and children included, takes a turn lighting the one family menorah. That developed precisely because there is only one menorah. Ashkenazim, each with their own menorah, never had that situation, so for them, "you lit your menorah, you finish it." For Sephardim, sharing the mitzvah is

normal, provided those lighting are Jewish and children old enough to understand what is happening.

Part Two: A House With Two Entrances (671:8)

בית שיש לו שני פתחים משני רוחות, צריך להדליק בשתיהן מפני החשד. אבל אם שניהם ברוח אחת, די לו באחד.
A house with two entrances on two sides must light at both, because of suspicion. If both are on the same side, one is enough.

- **The concern (חשד):** people passing on the other side will assume you did not light.
- **Most houses** do not face two public domains: the back is a garden. But on a very busy corner it can happen.
- **The Rema:** a berachah is said only on the first lighting. And **nowadays, when we light indoors** where no one sees, **the concern does not apply**.

Today: if you light indoors, there is nothing to discuss. But if you light **at a window facing a public domain**, and the house has **another window facing another busy public domain**, then really you should light **two menorahs**: the berachah on the main one, the second only because of suspicion. Here a child's menorah could be used. Even though Sephardim do not normally light two menorahs, here it would be appropriate. "It's not really practical": such houses are rare, and it applies only to lighting that can be seen from outside.

Part Three: The Earliest Time to Light (672:1)

אין מדליקין נר חנוכה קודם שתשקע החמה, אלא עם סוף שקיעתה, לא מאחרים ולא מקדימים. *One does not light before sunset, but with the end of sunset: not later and not earlier.*

The seif continues: if you are very busy and will not be able to light later, **you may light from פלג המנחה**, provided there is **enough oil to last until half an hour after nightfall**. "Of course we rely on that every Friday of Hanukah," since we cannot light at sunset once Shabbat has begun. Which other circumstances allow this comes next week.

What does "end of sunset" mean?

The Gemara says **משתשקע החמה**, "from when the sun sets." Does that mean: - **when the sun begins to set**, what we call **שקיעה** (that evening about **4:03**), or - **when the sun has fully set**, **nightfall** (that evening about **4:35–4:40**)?

The Rambam doesn't settle it: he writes **עם שקיעתה**, "with its setting."

Opinion	Rishonim	Practice
When the sun has set = nightfall	**Rabbeinu Tam, the Rosh, the Mordechai, the Tur**	**Sephardim**: at nightfall
When the sun begins to set = sunset	**The Rashba, the Ran**	**Many Ashkenazim**, notably **the Vilna Gaon**: right after sunset

The Shulḥan Arukh's one-word addition

The Shulḥan Arukh's line is **an exact quotation from the Rambam, except for one word: סוף**. The Rambam wrote "with its setting"; the Shulḥan Arukh wrote "with **the end of** its setting," and

so Sephardim light at nightfall. Those who follow the Gra light a minute or two after sunset ("4:04, 4:05").

Robert asked: if the Shulḥan Arukh meant nightfall, why not just say so? **The Rabbi:** because it is **preserving the words of the Rambam and of the Gemara**.

Robert's second question: do the Gra's followers then light before Arvit? **Yes.** Those who light at sunset (many in Israel and in Jerusalem do) pray Arvit later. How Arvit interacts with lighting for those who light at nightfall comes next week.

And a third: for those who light at sunset, must the oil last half an hour after sunset? Strictly by the Gaon, yes, half an hour after sunset. But in practice they add more oil and keep it burning until half an hour after nightfall, **to be yotzei according to all**.

The Bi'ur Halacha's proof about the Rambam

The main Hanukah sugya is in the second chapter of Shabbat, **במה מדליקין** (said on Friday nights), because it discusses the wicks and oils for Shabbat, and Hanukah comes up in that context. There the Gemara says **לא מקדימין ולא מאחרין**, which most read as referring to Shabbat candles, **but the Rambam applies it to Hanukah too.**

The Bi'ur Halacha: the warning "not earlier and not later" makes perfect sense **if the time is sunset**. A moment earlier is daytime, and lighting by day is pointless; too late, and people are no longer passing. **But if the time is nightfall**, why the emphasis? A few minutes before nightfall it is already **בין השמשות**, already dark. **So the Rambam must have meant sunset.**

Important: Don't Wait for the Calendar's "Shabbat Ends" Time

People often reason: we follow the Shulḥan Arukh, so we light at nightfall, and nightfall is the time Shabbat goes out on the calendar. **That's wrong, for several reasons:**

1. **Published times include תוספת שבת**, the extra time added to Shabbat.
2. **Even apart from that**, there are many ways to calculate nightfall, and the calendars adopt **one of the strictest**, because Shabbat is d'oraita. In essence there is probably a good **five to ten minutes, or more,** during which it is already nightfall. ("I say this carefully, and this should never be misused.")
3. **The Shulḥan Arukh says "with the end of sunset."** You don't literally have to wait for full nightfall.
4. **Some opinions count from sunset**, so it is better to err slightly earlier than later.

The worked example (that evening)

Time	Event
4:03	**Sunset.** Followers of the Gra light from 4:04–4:05
≈ 4:35	**Recommended lighting time for Sephardim**
≈ 4:40	Actual nightfall
4:54	Calendar time for the end of Shabbat (with tosefet and strict reckoning)

Lighting at about 4:35 is still **within half an hour of sunset**, so you satisfy those who count from sunset, while it is already **סוף שקיעה**, the end of sunset. "Better to bring it slightly basically just as nightfall… not wait until it's properly nightfall."

Tools: the **MyZmanim** website shows the different calculations. The same applies to fast days: the times published for London are strict. For rabbinic matters one may rely on **13.5 degrees**, which brings most rabbinic fasts out **10–15 minutes earlier**. For Hanukah, too, it is good to rely on that and light within the half hour rather than delaying.

Summary

1. **The synagogue menorah** stands in the **south**, lit **east to west**, like the Temple Menorah, between Minḥah and Arvit. It does **not** fulfil your home obligation.
2. **It is a custom**, unknown in the Talmud, Geonim, Rif or Rambam; first recorded in **Sefer Ha'Ittur (Marseille, c. 1200)**.
3. **Five reasons:** pirsumei nisa (the main one), persecution (Rivash), mikdash me'at (Sefer HaMikdash), the rabbi's home (Shibbolei HaLeket), travellers (Beit Yosef).
4. **A berachah on a custom** is normally ruled out (the Rambam; the aravah). It is justified here because of **pirsumei nisa**: the Rivash's "great custom," the Gra's parallel of **Seder-night Hallel in shul**, and Ḥacham Ovadia's "**extension of a real mitzvah**." An established custom overrides *safek berachot lehakel* (compare **הנותן ליעף כח**).
5. **Public menorahs** (weddings, dinners, shopping centres): the majority of poskim say **no berachah**. Ḥacham Ovadia is lenient, preferably with Arvit held there.
6. **Ten are needed** for the berachah; **women and children of ḥinuch age count**. On Friday you may light relying on ten arriving. It may be **put out after Arvit**.
7. **First night:** after lighting in shul, at home **alone** omit **Sheheḥeyanu**; for family, say all three. When the first night is a Friday, the synagogue omits Sheheḥeyanu.
8. **Friday timing:** for the congregation, between Minḥah and Arvit (or before Minḥah) is fine. The "pray Minḥah first" view is extreme and not the halacha.
9. **Two entrances on two public sides:** light at both because of suspicion, but not relevant when lighting indoors.
10. **The time to light:** Sephardim light at **the end of sunset** (the Shulḥan Arukh's added word **סוף**); followers of the Gra light at sunset. **Don't wait for the calendar's Shabbat-ends time.** Light around nightfall, slightly early, within half an hour of sunset.

Coming Up

Next week: **672:2 and 673**. The latest time to light; what to do if the time has passed; whether spouses should wait for each other; and **which oils and wicks** may be used.

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